

Dakshinanchal Vidyut Vitran Nigam Ltd. v. State of U.P.

High Court of Judicature at Allahabad · Single Judge · 25 November 2021 · Writ-C No. 65749 of 2014 · Writ-C No. 65749 of 2014
 · **Writ dismissed for non-prosecution; any interim order vacated; recall liberty reserved.**

HEADNOTE

The Allahabad High Court dismissed as unpressed a DISCOM writ against an Additional Commissioner's s.127 order that had quashed a s.135 theft and excess-load assessment. After notice in 2014, none appeared for the petitioners in 2021. The Court treated the petition as likely infructuous, vacated any interim order, and reserved liberty to seek recall if a cause of action survived. The assessment and appellate merits were not decided.

FACTUAL SUMMARY

The DISCOM assessed Adarsh Shiksha Samiti (connection of Rajendra Kumar Gupta) after a 12.08.2010 inspection found 14.756 KW used against a 7.5 KW sanctioned load and a tampered meter. Assessment of Rs 2,71,476.34 under s.135 was confirmed. The consumer's first writ was directed to a s.127 appeal, which the Additional Commissioner (Judicial), Agra, allowed on 02.04.2014, quashing the assessment. The DISCOM challenged that appellate order, citing clause 5.5 of the Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

dismissal of DISCOM writ against s.127 order for non-prosecution

HOLDING

The DISCOM's writ challenging a s.127 appellate order that quashed a s.135 assessment was dismissed when none appeared for the petitioners even on revised call. The Court treated the petition as likely infructuous or abandoned, vacated any interim order, and reserved liberty to apply for recall if a cause of action survived. The legality of the assessment and the appellate order was not examined. ¶ 1-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ADDITIONAL COMMISSIONER'S S.127 ORDER DATED 02.04.2014, QUASHING THE S.135/SUPPLY CODE ASSESSMENT, WAS SUSTAINABLE, INCLUDING THE DISCOM'S CLAUSE 5.5 OBJECTION

Petition dismissed for non-appearance without examining merits. ¶ 1-3